GOVERNMENT OF ANDHRA PRADESH
GENERAL ADMINISTRATION (I&PR.II) DEPARTMENT

CIRCULAR MEMO NO.85347/I&PR.II.A1.2005-6, DATED 30.8.2005.

Sub: RIGHT TO INFORMATION ACT, 2005 (Act 22 of 2005) – Action taken for operationalisation – Report – Called for.

Ref:
1. Govt. Lr.No. 83818/I&PR.II/A1/2005-1, G.A (I&PR.II) Dept., dated 12.7.2005.
2. Cir.Memo.No. 85305/I&PR.II/A1/2005-1, G.A(I&PR.II) Dept., dated 22.7.2005.
3. Cir.Memo.No. 85305/I&PR.II/A1/2005-2, G.A(I&PR.II) Dept., dated 25.7.2005.

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The attention of the officers noted in the address entry is invited to the references cited resting on the subject and they are informed that Section 4 (1) (a) and 4(1) (b) of Right to Information Act, 2005 reads as follows:

4 (1) Every public authority shall—

(a) maintain all its records duly catalogued and indexed in a manner and the form which facilitates the right to information under this Act and ensure that all records that are appropriate to be computerised are, within a reasonable time and subject to availability of resources, computerised and connected through a network all over the country on different systems so that access to such records is facilitated;

(b) publish within one hundred and twenty days from the enactment of this Act,—

(i) the particulars of its organisation, functions and duties;

(ii) the powers and duties of its officers and employees;

(iii) the procedure followed in the decision making process, including channels of supervision and accountability;

(iv) the norms set by it for the discharge of its functions;

(v) the rules, regulations, instructions, manuals and records, held by it or under its control or used by its employees for discharging its functions;

(vi) a statement of the categories of documents that are held by it or under its control;

(vii) the particulars of any arrangement that exists for consultation with, or representation by, the members of the public in relation to the formulation of its policy or implementation thereof;

(viii) a statement of the boards, councils, committees and other bodies consisting of two or more constituted as its part or for the purpose of its advice, and as to whether meetings of those boards, councils, committees and other bodies are open to the public, or the minutes of such meetings are accessible for public;

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(ix) a directory of its officers and employees;

(x) the monthly remuneration received by each of its officers and employees, including the system of compensation as provided in its regulations;

(xi) the budget allocated to each of its agency, indicating the particulars of all plans, proposed expenditures and reports on disbursements made;

(xii) the manner of execution of subsidy programmes, including the amounts allocated and the details of beneficiaries of such programmes;

(xiii) particulars of recipients of concessions, permits or authorisations granted by it;

(xiv) details in respect of the information, available to or held by it, reduced in an electronic form;

(xv) the particulars of facilities available to citizens for obtaining information, including the working hours of a library or reading room, if maintained for public use;

(xvi) the names, designations and other particulars of the Public Information Officers;

(xvii) such other information as may be prescribed and thereafter update these publications every year;

(c) publish all relevant facts while formulating important policies or announcing the decisions which affect public;

(d) provide reasons for its administrative or quasi-judicial decisions to affected persons.

2. In order to fulfill the above statutory obligations cast under sections 4(1) (a) and 4(1) (b), in the reference 2nd cited, among others all the Collectors & District Magistrates were directed;

a) to make every office in the district, of every department of the Government of Andhra Pradesh, at district, sub-divisional and mandal levels, to maintain records as prescribed in section 4 (1) (a).

b) to make every office in the district, of every Department of the Government of Andhra Pradesh, at district, sub-divisional and mandal levels, to publish manuals on or before 12.10.2005, as prescribed in section 4 (1) (b).

c) to bring to the notice every public authority in the district coming under the purview of the definition of Public Authority under section 2 (h) of the Act, to take action on the lines of sub-paras (a) and (b) above.

3. In order to fulfill the obligations cast under the sub-section 4(1) (a), 4(1) (b), in the reference 3rd cited, interalia, all the Spl.C.Ss/Prl.Secys/Secys were also requested to take action.

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a) i) to maintain records at the Secretariat Department as prescribed in section 4 (1) (a).

b) to publish manuals about the working of the Secretariat Department, on or before 12.10.2005, as prescribed in section 4 (1) (b).

b) to instruct the HOD's under their control to take action as below, both in respect of the Head Offices of the Departments as well as every subordinate office of the Department at the Regional, District, Sub-Divisional and Mandal Levels:

i) to maintain records as prescribed in section 4(1)(a).

ii) to publish manuals on or before 12.10.2005, as prescribed in section 4(1) (b).

c) to bring to the notice of every public authority (as per the definition of Public Authority under section 2(h) of the Act), coming under the purview of the Department, to take action as below in respect of the Head Office of the Public Authority as well as the offices of the said Public Authority at Regional, district, Sub-Divisional and Mandal levels:

i) to maintain records as prescribed in section 4 (1) (a)

ii) to publish manuals on or before 12.10.2005, as prescribed in section 4 (1) (b).

4. Action to be taken under Section 4 (1) (a) and 4 (1) (b) of the Act was also reiterated during the Collectors conference held on 22nd and 23rd July, 2005, and in the workshop on Right to Information organized on 30.7.2005 at Dr. MCR HRDI of A.P. for Secretaries and selected Head of Departments and during the Secretaries meeting held on 4.8.2005 presided by the Chief Secretary.

5. **In the above circumstances as these are statutory obligations to be fulfilled within the time frame stipulated in the Act, i.e., on or before 23.09.2005/12.10.2005,** all the officers noted in the address entry are requested to take urgent action as requested and furnish reports regarding the action taken on or before 15.09.2005.

This should be given **"TOP PRIORITY "**.

A. RAGHOTHAM RAO
SPL. CHIEF SECY. TO GOVT. (Coord. & GPM&AR)